

Athens, 04-09-2024

No. Protocol: 2320

DECISION 25/2024

(Department)

The Hellenic Data Protection Authority convened in a Department composition via teleconference on 24-07-2024, following an invitation from its President, in order to examine the case referred to in the background of this document. Present were Georgios Batzalexis, Deputy President, in the absence of the President of the Authority Konstantinos Menoudakis, the regular member Christos Kalloniatis as rapporteur, and the alternate members Dimosthenis Bougioukas and Maria Psalla replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias respectively, who, although duly summoned in writing, did not attend due to impediments. Also present at the meeting, by order of the President, were Panagiotis Tsopelas, IT auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

A complaint was submitted to the Authority under protocol number G/EIS/8290/21-12-2021 by A (hereinafter referred to as "the complainant"), ... and ... of the employees' union of the Agricultural Olive Oil Cooperative of Stylida (hereinafter referred to as "A.E.S.S." or "the complained party"), regarding the operation of a video surveillance system in an area where employees are active. The complainant, in the aforementioned complaint, claims, among other things, the following:

1. A.E.S.S. did not uninstall the entrance camera of the office building in Stylida after the written recommendation of the Authority under protocol number G/EXE/2459/01-11-2021.
2. The President and the director of A.E.S.S. monitored the area via the video surveillance system from their mobile phones and made telephone reprimands to the employees.
3. The employees of the cooperative have not given their consent for the operation of the video surveillance system.
4. The camera in the production area, which A.E.S.S. claims is virtual, actually operates normally and records the movements and performance of the employees.
5. The camera at the main entrance gate to the external area records not only the surroundings of the facilities but also the traffic towards the Industrial Area of Lamia (hereinafter "B.I.P.E.").
6. The camera located in the parking lot supervises not only the vehicles in the parking lot but also the corridor leading to the main entrance of the building of the facilities.
7. Through the camera in the IT area, the chamber for the restrooms and changing rooms is monitored.
8. The cameras in the reception area cover the courtyard section of the olive reception area and the tanks with brine and soda where there are no security reasons.
9. The identities of the responsible person and those executing the processing, as defined in the minutes number 1019 of the meeting of the Board of Directors of the Agricultural Olive Oil Cooperative of Stylida held on 25/09/2019, have not been announced to any employee, nor to the employees' union.

The Authority sent a document under protocol number G/EXE/255/01-02-2022 requesting the views of A.E.S.S., which responded with the documents under protocol numbers G/EIS/1603/02-02-2022 and G/EIS/1921/07-02-2022, submitting the following:

1. A memorandum which states, among other things, the following:
 - a. The Board of Directors informed the director and the heads of departments about the decision to

install the system in order to verbally inform their subordinates. Furthermore, the employees are informed about the video surveillance system through signs that are posted in visible locations.

b. After the lapse of 7 days, the files are automatically deleted from the hard drive of the system.

c. Access to the camera recording fields and stored data is only possible at the local network level. An exception is the ability to access the video surveillance system of the Stylida unit from the remote network of the Industrial Area of Lamia (hereinafter "B.I.P.E.") so that the President can connect to the Stylida cameras from his office.

d. Two users have been created for authentication in the system, the credentials of which are held by the President of the Cooperative.

2. Responses to a questionnaire from the Authority.

3. Photographs from the camera in the production area.

Subsequently, the Authority sent a document under protocol number G/EXE/812/31-03-2022 asking whether A.E.S.S. has security personnel and requesting the submission of the activity log and a copy of the decision for the installation of the video surveillance system. A.E.S.S. responded with the document under protocol number G/EIS/5634/07-04-2022 submitting the relevant log files and stating that there is no written decision for the installation of the video surveillance system. Additionally, in response to the Authority's request under protocol number G/EXE/1185/19-05-2022 for the submission of the proof of the virtual camera located in the production area, A.E.S.S. submitted a responsible declaration from the company that installed the system stating that the virtual camera was provided free of charge due to its negligible value. Supplementarily, a technical wiring report from the installer was also submitted in the above response.

The Authority conducted an inspection of the video surveillance system of A.E.S.S. on 16-06-2023 via remote connection, following the document under protocol number G/EXE/2853/14-11-

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2022 relevant document. In the context of the audit, the data controller was requested to access the two recording systems it possessed and examined the fields of view of the cameras, the stored video footage, the log files, and the other system settings (authentication and authorization methodology, technology and capabilities of the cameras, etc.). Following the aforementioned audit, the Authority prepared the administrative audit report numbered G/EIS/2319/12-03-2024.

It is noted that the Authority had previously examined this system, ex officio, in relation to the complaint numbered G/EIS/2570/14-04-2021 and had issued the written recommendation numbered G/EXE/2459/01-11-2021 to the data controller, stating, among other things, the following:

1. From the snapshot of the field of view of the entrance camera of the office building in Stylida, it is evident that the field of view of this camera is larger than what is required to achieve the intended purpose (the image should be limited to the entrance of the building), as it also covers part of the vestibule of the entrance that includes chairs and a desk. Therefore, appropriate technical and organizational measures should be taken to further minimize the processing of personal data in accordance with the principles of proportionality, taking into account what is stated in Article 7 of Directive 1/2011.

2. Based on the coverage fields of the cameras of the video surveillance system as reflected in the image samples submitted and what is stated in the memorandum and the technical report, and subject to the aforementioned, it does not appear that more image data is being collected than is necessary to achieve the intended purpose of processing, which cannot be achieved by milder and equally effective means.

3. No deviation was found from what is stipulated in Article 9 of Directive 1/2011 regarding the transmission of data to third parties, as the relevant transmission concerns a judicial investigation related to a criminal act.

In light of the above, the Authority, with the summonses numbered G/EXE/880/14-03-2024 and

G/EXE/881/14-03-2024, summoned both parties before the Department of the Authority on 27.03.2024 to discuss the aforementioned complaint. During the hearing on 27.03.2024, the complainant was represented by A and his lawyer Dimitrios Kritsanos with AMDSL ... (LARISSA), and on behalf of A.E.S.S., the Vice President B, the electronic installer C, the Director D of A.E.S. Stylida, the computer scientist E of A.E.S. Stylida, and the lawyer Astrakas Michail AM ... DSL Lamia.

Both parties, after orally presenting their views, were given a deadline during this session to submit memoranda to further support their claims, and they timely submitted the memorandum numbered G/EIS/3386/11-04-2024 from the respondent, and the memorandum numbered G/EIS/3443/12-04-2024 from the complainant. In the process of the hearing and in the aforementioned memoranda, the following was mentioned, among other things:

1. The complainant claimed that when employees are absent from their work, the respondent is aware of it through the video surveillance system and thus the system is used for monitoring and evaluating employees.
2. The complainant claimed that he had opposed the operation of the cameras during the installation of the system.
3. The complainant claimed that the camera in the production area is operational while A.E.S.S. claims it is fake. To support this claim, the complainant stated that since there is no afternoon shift monitoring in the area monitored by the camera, the supervision of the employees in that area is done through the video surveillance system.
4. The complainant claimed that the cameras are not placed in critical points such as the safe or the chemistry lab and that the security of individuals is

data that may constitute evidence of a criminal act against the person depicted as a victim or perpetrator of the act."

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and goods could be achieved through milder and more effective means.

5. The A.E.S.S. claimed that the motive for the complaint is the dismissal of a third employee. The dismissed employee caused, after the announcement of his dismissal, damage that was recorded by the video surveillance system. The recorded material is evidence in a legal dispute between the two parties.
6. The A.E.S.S. claimed that the area is large in size and therefore the video surveillance system is necessary for security purposes and to prevent accidents/vandalism.
7. The complainant claimed that there has been subsequent reconfiguration of the cameras regarding the fields of view.
8. The A.E.S.S. claimed that employee evaluation can arise from measurable productivity indicators, thus the use of a video surveillance system is not necessary to achieve this purpose.
9. The A.E.S.S. claimed that the virtual camera remains in place in order not to give the complainant the opportunity to use the argument that it was removed "maliciously" so that the Authority cannot examine the issue.
10. The A.E.S.S. claimed that the uninstallation of the virtual camera should be requested from the Authority.
11. The A.E.S.S. claimed that the installation of the cameras was done during working hours and that the supervisors were informed, who are then responsible for informing the staff.

The Authority, after examining the evidence in the file, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

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CONSIDERED ACCORDING TO THE LAW

1. The installation and operation of video surveillance systems involving the capture or recording of images or sounds through the collection, maintenance, storage, access, and transmission of personal data constitute individual acts of processing, interfering with the individual rights to respect for private

life according to Article 9 of the Constitution, Article 7 of the Charter of Fundamental Rights of the European Union (CFR), and Article 8 of the European Convention on Human Rights (ECHR), as well as the protection of personal data according to Article 9A of the Constitution, Article 8 of the ECHR, and Article 8 of the CFR, as determined by the Authority in its Opinion No. 3/2020.

2. According to the Guidelines 3/2019 of the European Data Protection Board (EDPB), regarding the processing of personal data through video devices, in order to assess the legality of the installation and operation of the video surveillance system, the conditions of Articles 5 and 6, paragraph 1 of Regulation (EU) 2016/679 on Data Protection (General Data Protection Regulation - GDPR) must be cumulatively met, and the legality of the processing must be internally documented prior to the installation and operation of the system, and indeed, in determining the purpose of the processing, a relevant assessment may be required for each camera separately, depending on its placement. Specifically, in these Guidelines, the following is stated: "5: Video surveillance is not inherently necessary if there are other means to achieve the underlying purpose. Otherwise, there is a risk that cultural norms will change and thus the lack of privacy will be established as a general principle (...)", "20: The legitimate interest must actually exist and relate to a present issue (i.e., the interest must not be fictitious or hypothetical). There must be a real state of risk—such as damages or serious incidents in the past—before the commencement of surveillance. (...)" and "24. Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed."

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processing ("data minimization"), see Article 5 paragraph 1 point c). Before the installation of a video surveillance system, the data controller must always thoroughly examine whether this measure is, firstly, suitable for achieving the desired objective and, secondly, sufficient and necessary for achieving the purposes. Video surveillance measures should only be selected if the purpose of processing cannot reasonably be fulfilled by other means that infringe to a lesser extent the fundamental rights and freedoms of the data subject.

3. According to Article 27 No. 7 of Law 4624/2019, "The processing of personal data through closed-circuit visual recording within workplaces, whether publicly accessible or not, is permitted only if it is necessary for the protection of persons and property. Data collected through closed-circuit visual recording may not be used as a criterion for evaluating employee performance. Employees are informed in writing, either in written or electronic form, about the installation and operation of closed-circuit visual recording within the workplaces."

4. The Authority has issued Directive No. 1/2011 on the issue of using video surveillance systems for the purpose of protecting persons and property, the provisions of which must be applied in conjunction with the provisions of the GDPR and Law 4624/2019, which defines the implementation measures of the GDPR. This particularly applies to the obligations of the Data Protection Officer (DPO) included in Chapter C of this Directive (Articles 10 to 13 of Directive 1/2011). For example, data controllers no longer have the obligation to notify the Authority of the processing, but must take the necessary measures to comply with the requirements of the GDPR and ensure the satisfaction of the enhanced rights provided by the GDPR.

5. According to Article 7 of Directive 1/2011 of the Authority, the application of the principle of proportionality is particularly important in cases of operating video surveillance systems in workplaces. The system should not be used to monitor employees within these workplaces, except in specific exceptional cases where this is justified by the nature and conditions of work and is necessary for the protection of the health and safety of employees or the protection of critical workplaces (e.g., military factories, banks, high-risk facilities). Also, in special areas, such as areas with electromechanical installations, the shift supervisor or the security officer may monitor in real-time the operators of high-risk machinery, in order to intervene immediately if a security incident occurs. In any case, the data collected through a video surveillance system may not be used as the sole criteria for evaluating the behavior and performance of employees (see Directive No. 115/2001 on the processing of personal data of employees, Section E, paragraphs 6 – 8).

6. According to Article 32 of the GDPR, taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of processing, as well as the risks of

varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the processor implement appropriate technical and organizational measures to ensure an adequate level of security against the risks.

7. The Authority further examined the video surveillance system of the Data Protection Officer, taking into account that, in this case, the relevant complaint was submitted by a directly affected person, namely an employee of the Data Protection Officer, and that in the said complaint some new elements were submitted, such as the issue of written notification of employees, adherence to the principle of data minimization, and the assertion that the camera in the production area is not virtual as claimed by the data controller.

8. The Authority conducted a remote inspection of the video surveillance system of the Data Protection Officer on 16-06-2023, collected the evidence numbered G/EIS/5304/18-07-2023, and prepared the administrative inspection report numbered G/EIS/2319/12-03-2024.

9. From the examination of the findings of the above inspection and the other elements of the file, it appears that the processing of personal data through closed-circuit visual recording in the premises of the Data Protection Officer is necessary for the protection of persons and property as defined in Article 27 No. 7 of Law 4624/2019 and is further specified in the table of the annex at the end of this document.

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10. From the examination of the findings of the aforementioned audit and the other elements of the file, the claim of the complainant that the system is used for the surveillance of employees and that there is an issue of violation of the principle of proportionality according to Article 7 of Directive 1/2011 is not substantiated for the following reasons:

- a. From the findings of the audit and the examination of the elements of the file, the topology of the cameras serves the purpose of preventing theft and attempted sabotage, as stated in the annex at the end of this document. Therefore, the claim of the complainant that the positions of the cameras are not justified by the purpose of processing is rejected as unfounded.
- b. From the inspection of the log files, no user access was observed during hours and days that would indicate the use of the surveillance system for purposes other than the security of persons and property.
- c. No sufficient evidence emerged to substantiate the complainant's claim that the responsible parties of the A.E.S.S. were monitoring employees from remote locations via portable devices, nor that they issued reprimands to the employees.
- d. Taking into account the particularity of the facilities (size and configuration of the space) and the risk of causing extensive damage in the event of sabotage, the complainant's assertion that the intended purpose of processing could be achieved by milder and equally effective means (such as motion sensors) is not valid, because in this case, these means cannot function as deterrents to the same extent and do not provide corresponding reliability of evidence in the context of investigating an incident.

11. Nevertheless, an issue arises regarding the limitation of personal data to what is necessary ("data minimization"), as defined by Article 5 paragraph 1 point c) of the GDPR. Specifically, the fields of view of cameras 1, 2, 4, and 5 should be further restricted as indicated in the table of the annex at the end of this document, either by using the shading capability provided by the recording software or by relocating the cameras. Special attention should be given to camera 2, for which, while the A.E.S.S. states that it captures images only from the ramp of the main entrance and the entrance of the fertilizer warehouse, in reality, the field of view includes part of the parking area and a small section of the public road.

12. Regarding the camera in the production area, the Authority cannot determine from the examination of the findings of the audit and the elements of the case file whether personal data processing is taking place in this instance. The reason is that it cannot be proven that the said camera is real, nor can the view that the camera is virtual be established, for the following reasons:

- a. From the photographic material submitted by the A.E.S.S., it appears that the camera is virtual.

However, the presence of a channel leading to this camera without the need for wiring infrastructure since the camera operates on batteries raises questions regarding the said photographic material.

b. The A.E.S.S., in response to a related request from the Authority, did not submit any invoice substantiating the purchase of the virtual camera, as it stated that the camera was provided as a donation by the installer. To support this claim, it submitted a relevant responsible declaration.

c. From the detection of the Address Resolution Protocol (ARP) records that took place during the administrative audit, it was found that there were no traces of network or hardware addresses in the ARP tables' cache that would refer to hidden Internet of Things (IoT) devices. However, this finding cannot safely lead to the conclusion that the production area camera is real or virtual because part of the video surveillance system is not connected to a network based on Internet Protocol (IP).

It should be noted that while no personal data processing occurs with fake cameras, such a system that simulates closed-circuit television, even though it does not operate, may create in citizens the belief that personal data processing is taking place. The citizen's sense that they are likely being monitored affects their behavior.

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Therefore, the installation of such a system is quite likely to infringe upon the constitutionally guaranteed right to the free development of the individual's personality (Article 5 § 1 of the Constitution).

13. From the findings of the audit, deficiencies were identified on the part of A.E.S.S. regarding the implementation of appropriate technical and organizational measures to ensure an adequate level of security against risks in accordance with Article 32 of the GDPR. Specifically, as extensively detailed in the audit report, issues arose concerning the following matters:

a. User system privileges (findings 3 and 4): The President of A.E.S.S. connects to the system with elevated privileges (administrator account). For security reasons, access with administrator roles should only be permitted to the technical responsible person for the system.

b. Storage timelines (finding 5): The system does not restrict recording to specific hours (e.g., during hours necessary for the safety of persons and property), thus failing to ensure the principle of data minimization concerning this process.

c. Data transmission (finding 6): The system does not use SSL or TLS encryption (file B.10) during the exchange of data streams, despite the relevant capability being provided by the software.

d. Universal Plug and Play access (finding 7): The UPnP protocol option is enabled, which raises a security gap.

14. During the remote audit of the system, it was found that the ability to capture audio from the cameras was disabled on all recording devices.

15. Regarding the issue of informing employees about the operation of the video surveillance system, the examination of the file reveals that there is no written notification to the employees. Therefore, in this case, a violation of the principle of transparency under Article 5 paragraph 1 of the GDPR is established. However, there has been relevant verbal information provided to the members of A.E.S.S. within the framework of the decision-making process for the installation of the video surveillance system, and signs have been posted in visible locations informing that the area is monitored by the presence of a video surveillance system.

16. Concerning the complainant's assertion that the purpose of processing mentioned by the data controller could be achieved by milder and equally effective means, such as the installation of an alarm system, motion sensors, or the placement of cameras in other locations where there are no employees, it is established that, in this case, the purposes of monitoring are documented in writing and clarified for each surveillance camera used; thus, the installation is lawful. Therefore, since this choice contributes to the protection of property and other assets, the protection of life and physical integrity of individuals, and the collection of evidence for civil lawsuits, the data controller bears the responsibility for shaping the morphology and topology of the system.

17. Regarding the respondent's claim that the video surveillance system in the storage areas of edible oils aims to protect health, given that it acts as a deterrent to potential sabotage attempts through the

addition of some dangerous substance to the produced product or raw material, it is noted that according to Article 7 of Directive 1/2011 of the Authority, the application of the principle of proportionality is particularly important in cases of operating video surveillance systems in workplaces. The system should not be used to monitor employees within these areas, except in specific exceptional cases where it is necessary for the protection of the health and safety of employees or the protection of critical workplaces (e.g., military factories, banks, high-risk facilities). In any case, the data collected through the video surveillance system may not be used as the sole criteria for evaluating the behavior and performance of employees (see Directive No. 115/2001 on the processing of personal data of employees, Section E, paragraphs 6 – 8).

7 According to Guidelines 3/2019 on the processing of personal data through video devices (https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-32019-processing-personal-data-through-video_en)

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18. From the examination of the case file, the claim of the complainant that A.E.S.S. monitored the facilities through a client application of the recording system on a portable device from remote locations and made suggestions to employees cannot be established, as no evidence was presented to substantiate this view, and because, even if such monitoring were to take place, it could also be achieved through other means such as reports from other employees, the use of productivity indicators, etc.

19. For the assessment of fines, based on Article 83 of the GDPR, the Authority takes into account the guidelines 4/2022 of the EDPB for the calculation of administrative fines as well as the following:

a. The severity of the established violations is considered in all cases to be minor, taking into account that it is not substantiated that the video surveillance system is used for monitoring employees and that the purpose of the installation is the protection of persons and property and has been justified by the data controller as analyzed in recitals 9 and 10 of this document.

b. The Authority takes into account the following mitigating factors:

i. The allegation of monitoring employees through the video surveillance system is not substantiated.

ii. The purpose of the processing cannot be achieved by milder and equally effective means.

iii. The video surveillance system contributes to the protection of the health of employees and consumers of the produced products.

iv. Agricultural cooperatives are autonomous voluntary associations of persons.

v. The violations of the GDPR that were established are of minor significance.

c. The Authority takes into account the following aggravating factors:

i. The violation of the principle of data minimization regarding the coverage scope of certain cameras.

ii. The violation of the principle of transparency regarding the information provided to employees.

iii. The fact that the controller and the processors do not implement sufficient technical and organizational measures to ensure an appropriate level of security against risks.

FOR THESE REASONS

The Authority:

A. Imposes, on the Agricultural Olive Oil Cooperative of Stylida based on Article 58 paragraph 2 subparagraph (h) of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that is appropriate in this specific case according to its particular circumstances, amounting to two thousand (2,000.00) euros, for the aforementioned established violations of Articles 5 paragraph 1 points (a) and (c) and 32 of the GDPR as analyzed in recitals 11 and 14 of this document.

B. Based on Article 58 paragraph 2 subparagraph (d) of the GDPR, orders that, within a period of two

months from the notification of the decision, the fields of view of cameras 1, 2, 4, and 5 be modified so that they monitor exclusively and only the area required to achieve the purpose for which they are intended. Specifically, the field of view of camera 1 should not include areas outside the facilities of the data controller, the field of view of camera 2 should be limited to the entrance of the fertilizer warehouse, and the fields of view of cameras 4 and 5 should include only the entrances of the building of the facilities.

C. Based on Article 58 paragraph 2 subparagraph (d) of the GDPR, orders that, within a period of one month from the notification of the decision, the employees in the area be informed in writing about the operation of the video surveillance system, mentioning, among other things, the following:

- a. The full identity and contact details of the data controller.
- b. The purpose of the processing as well as the legal basis for the processing.
- c. The recipients of the personal data.
- d. The duration for which the data will be stored.
- e. The manner in which the data subject can exercise their rights arising from the legislation on the protection of personal data, specifying which rights apply.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou